

Cover Letter — Asian Journal of Criminology

Dear Editor,

We submit for your consideration our manuscript entitled “**Broken Proportionality: Prosecutorial Demands and State Financial Loss in Indonesian Corruption Cases**” for publication in the *Asian Journal of Criminology*.

This study presents the first large-scale computational analysis of Indonesian corruption prosecution, using a novel corpus of 262 Indonesian Supreme Court corruption verdicts with documented state financial losses spanning seven orders of magnitude. We report three principal findings:

1. **Prosecution demands are highly inelastic to state loss.** The log-log elasticity of prosecution demand (*tuntutan*) with respect to state financial loss (*kerugian negara*) is 0.124 (bootstrap 95% CI [0.102, 0.150]) — about 43% of the loss-severity gradient US federal courts actually deliver in practice (realized elasticity ≈ 0.29), achieved with no sentencing guidelines at all. A Rp 100 billion case — ten thousand times the harm of a Rp 10 million case — draws a demand only 3.1 times longer.
2. **Discretion enters the system upstream of the judge.** Under identical case-fact specifications, sentences are in fact somewhat *more* predictable than demands ($R^2=0.50$ vs 0.40), while the sentence-loss elasticity (0.145) modestly exceeds the demand-loss elasticity (0.124). Judges partially correct toward case facts rather than purely transmitting the prosecutorial anchor.
3. **The marginal expected punishment for escalating corruption is negligible.** Because the proportionality failure originates in prosecutorial discretion, reform aimed only at judges would leave the binding constraint largely untouched — a policy implication directly relevant to anti-corruption reform across Asia.

We believe this manuscript fits well within the scope of the *Asian Journal of Criminology*: it is an evidence-based, empirical study of the administration of criminal justice in an Asian country (Indonesia), speaks to the journal’s emphasis on criminal law and crime prevention, and includes a comparative benchmark against US federal sentencing practice that engages the journal’s comparative agenda.

The manuscript has not been submitted elsewhere. Code and analysis scripts are available for reproducibility, and the underlying corpus is described with full documentation of its validation. A preprint version has been posted on SSRN (Abstract ID: 6580258).

In accordance with Springer Nature’s policy on AI-assisted tools, we disclose that Claude (Anthropic) was used as a computational research assistant for programming, literature search, and manuscript drafting. All analyses were independently verified through reproducible scripts, and we take full responsibility for all scientific claims and interpretations. Full details are provided in the Declarations section of the manuscript.

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